

I.

1.

Request

The Directorate-General for Foreign Policy of the Ministry of Foreign Affairs requested the National Data Protection Commission (CNPd) to issue an Opinion on the project of Agreement between the Federative Republic of Brazil.

2.

Changes were made taking into account the opinion issued by this National Data Protection Commission. The introduced changes are in accordance with the aforementioned opinion and ensure the necessary security in the exchange of personal data.

3. The CNPD issues an opinion within the scope of its powers and competencies, as the Supervisory Authority for the processing of personal data, conferred by paragraph 1 of article 43 and with subparagraphs a) and c) of paragraph 1 of article 44, all of Law No. 59/2019, of August 8, which approves the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, or repression of criminal offenses or enforcement of criminal sanctions, transposing Directive (EU) 2016/680 of the Parliament and of the Council, of April 27, 2016.

II.

Analysis

4. In Opinion/2025/17, dated February 9, the CNPD expressed its views on the first version of the proposed Agreement between the Portuguese Republic and the Federative Republic of Brazil for the exchange of information related to criminal records and criminal backgrounds, having raised nine issues that justified the introduction of changes to the text to safeguard the protection of the data of the affected individuals, which are reproduced here:

- a) It is essential that the text of the Agreement contains standards that address the lack of data protection legislation in this area in the Federative Republic of Brazil, so that the adequate guarantees of personal data protection provided by Portuguese Law and by European Union Law are ensured;
- b) As far as possible, other purposes for which the processing of personal data covered by the Agreement is admitted should be specified, and the categories of personal data associated with them should be indicated;
- c) The Agreement must contain obligations regarding the security of personal data processing, and the means and effective conditions under which international data transfers occur should be better clarified;
- d) The standards regarding the processing of personal data should be elaborated, namely, the specific conditions for the exercise of rights, the conditions under which such rights may be derogated, which entities are responsible for satisfying the rights of the data subject, and whether the data subject can exercise them indiscriminately before one or the other Contracting State;
- e) An obligation should be added for the Requested Party to notify the Receiving Party whenever the personal data require rectification or should be deleted, or are subject to other restrictions, and consequently, the obligation for the Receiving Party to comply with this notification should be provided;
- f) Article 7 of the Agreement establishes the duty of custody of the data by the Requesting State, "for the purpose of possible retransmission." This provision should be repositioned in Article 11, clarifying the situations in which such retransmission may occur and clearly distinguishing two situations: it means that there is a subsequent transfer. Thus, it should be expressly provided that communication to third parties, of any nature, is subject to prior authorization from the Requested Party, which must be requested and answered in writing, duly substantiated;
- g) It should be added that in addition to the authorization of the Requested Party, this may only occur on the condition that there are adequate guarantees regarding data protection in the destination country;
- h) It should also be added that the Receiving Party of the data is obliged to respect any restrictions to

which the personal data are subject;

i) Finally, the Agreement should include a provision regarding administrative and/or judicial remedies for data subjects, which must be guaranteed in relation to any processing of personal data resulting from this Agreement.

5. In the version of the Agreement currently under analysis, the CNPD welcomes the fact that several recommendations made in its Opinion/2025/17, dated February 9, have been accommodated, and further indicates, with reference to the conclusions of this Opinion:

a) Regarding the matter of subparagraph c) of the conclusions: paragraphs 4 to 7 have been added to the current Article 10, however, it should be emphasized the need to specify the means and concrete conditions under which the transfers occur to safeguard the integrity and confidentiality thereof;

b) Regarding the matter of subparagraph d) of the conclusions: the entities responsible for satisfying those rights must be identified. However, it would be important to include the identification of those entities;

c) Regarding the matters of subparagraphs e), g), and h) of the conclusions: the recommendations contained therein were not taken into account in the new text, which seems relevant to ensure adequate guarantees of personal data protection in this context.

III.

Conclusion

Considering the new version of the Agreement, the CNPD expresses its opinion in the terms set forth above, in its Point 5.

Lisbon, February 17, 2025

Paula Meira Lourenço (President)